

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board, to Deputy Commissioner Tarek A. Rahman, Department Advocate's Office, February 25, 2025. Contents noted. Recommend approval of the negotiated plea agreement in PODS C-32089 against Police Officer Mario Valencia, Tax Registry No. 937668. The case was conferenced on February 13, 2025, before Assistant Deputy Commissioner of Trials Paul M. Gamble, Sr. who approved the negotiated penalty of Command Discipline Schedule A and a forfeiture of Five (5) vacation days, after Police Officer Valencia accepted the findings and substantiation of the allegations contained in the Charges and Specifications dated November 13, 2024. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-032089BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, VALENCIA	FIRST MARIO	M.I.	COMMAND 870
SHIELD NO. 14562	TAX REGISTRY NO. 937668	SOCIAL SECURITY NO.	DATE APPOINTED	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Mario Valencia, on or about June 9, 2023, at approximately 0930, while assigned to TD 33 and on duty, and in the vicinity of the Transit District 33 station house, Kings County, New York, wrongfully used force, in that he used physical force against § 87(2)(b) by raising § 87(2)(b) arms up behind his back until they were perpendicular with his body without police necessity.	DISMISSED	A-COMMAND DISCIPLINE .00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated.
2. Police Officer Mario Valencia, on or about June 9, 2023, at approximately 0930, while assigned to TD 33 and on duty, and in the vicinity of the Euclid Avenue A train station, Kings County, New York, wrongfully used force, in that he used physical force against § 87(2)(b) by pulling the chain of his handcuffs while he was handcuffed without police necessity.	DISMISSED	VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.


FIRST DEPUTY COMMISSIONER03/06/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER3/11/25
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, March 6, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. C-032089 against Police Officer Mario Valencia, Tax No. 937668, with the recommendation that the Charges and Specifications against Police Officer Valencia be dismissed and that Police Officer Valencia receive a Schedule "A" Command Discipline and forfeit five (5) vacation days. Assistant Deputy Commissioner, Trials Paul Gamble reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED
MAR 11 2025

JESSICA S. TISCH
POLICE COMMISSIONER